



NO NECESSITY COULD JUSTIFY KILLING

THE QUEEN V. DUDLEY AND STEPHENS (1884)

IN CONTEXT

FOCUS

Criminal law

BEFORE

1600s Six English sailors who killed and ate a compatriot, with his agreement, are cleared of his murder in the “Saint Christopher case.”

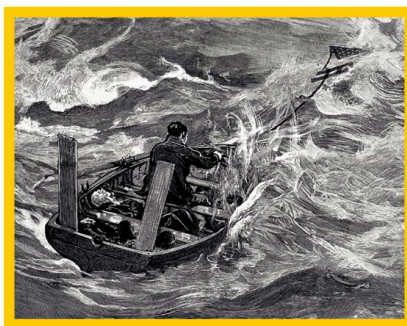
1841 In the US, a court finds crewman Alexander Holmes guilty of manslaughter after he threw up to 16 people overboard to prevent a lifeboat from sinking.

AFTER

1971 British lawyer and judge Lord Denning rules that “necessity” does not mean squatters may trespass.

2018 A Massachusetts judge sets a legal precedent when she rules that environmental activists could employ the defense of necessity to justify their climate-change protest over a fracked gas pipeline.

When the *Mignonette*, a 52-ft (16-m) English yacht, was wrecked during a storm around 1,600 miles (2,575 km) off the Cape of Good Hope, South Africa, in July 1884, her crew—Tom Dudley, Edwin Stephens, Edmund Brooks, and cabin boy Richard Parker—escaped in a lifeboat. After 20 days with very little food and water, in order to save themselves, Dudley and Stephens decided to kill and eat Parker, who had fallen into a coma.



The Dudley and Stephens case was widely reported in the media. This image, based on a sketch by Stephens himself, appeared in the *Illustrated London News*.

A few days later, the surviving men were rescued and transported home to Falmouth, on Britain's southwest coast, to be put on trial.

The story gained substantial coverage in the Victorian press, and public opinion was in favor of acquittal; many were convinced that there had been no option but for the men to kill and eat Parker. Due in part to the strength of public opinion, it was felt important that the trial go ahead and the principle of necessity be tested. The judge, Baron Huddleston, asked the jury to return a “special verdict” that would ensure a panel of judges could make a ruling. They ruled that there was no common-law defense of necessity in a murder charge and handed down the death penalty, with a recommendation for clemency.

Dudley and Stephens served 6 months in prison when their sentences were commuted by the Crown. This case set the precedent that the killing of an innocent, even in the event of extreme hunger, has no defense in English law. ■

See also: The Ten Commandments and Mosaic law 20–23 ■ The *Lex Rhodia* 25
■ The abolition of the death penalty 151 ■ The exclusionary rule 186–187